

1 AN ACT relating to adult education.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔SECTION 1. A NEW SECTION OF KRS CHAPTER 151B IS CREATED TO
4 READ AS FOLLOWS:

5 **No less than eighty-five percent (85%) of general fund moneys appropriated by the**
6 **General Assembly to the Office of Adult Education shall be used for programs to fulfill**
7 **the adult education mission and goals enumerated in KRS 151B.402, 151B.403,**
8 **151B.406, and 151B.408. The Office of Adult Education may utilize any remaining**
9 **general fund moneys for administrative operations.**

10 ➔Section 2. KRS 151B.403 is amended to read as follows:

11 (1) The Office of Adult Education within the Department of Workforce Development
12 in the Education and Labor Cabinet shall promulgate administrative regulations to
13 establish programs aligned with the College and Career Readiness Standards for
14 Adult Education, or any other similar standards adopted by the federal Office of
15 Career, Technical, and Adult Education, which upon successful completion, shall
16 result in the issuance of a High School Equivalency Diploma.

17 (2) **(a)** At least one (1) program authorized under subsection (1) of this section shall
18 include a test aligned with the College and Career Readiness Standards for
19 Adult Education, or any other standards adopted by the federal Office of
20 Career, Technical, and Adult Education, to serve as a qualifying test, which
21 upon passing, shall entitle students to receive a High School Equivalency
22 Diploma.

23 **(b) A qualifying test meeting the requirements of paragraph (a) of this**
24 **subsection shall provide an option for students to be administered a written**
25 **or paper test in lieu of an electronic administration.**

26 (3) For purposes of any public employment, a High School Equivalency Diploma shall
27 be considered equal to a high school diploma issued under the provisions of KRS

1 158.140.

2 (4) A High School Equivalency Diploma shall be issued without charge upon
3 successfully completing a High School Equivalency Diploma program. A fee may
4 be assessed by the Office of Adult Education for the issuance of a duplicate High
5 School Equivalency Diploma and for issuance of a duplicate score report. All fees
6 collected for duplicate diplomas and score reports shall be used to support the adult
7 education program.

8 (5) The Office of Adult Education is authorized to contract annually with an institution
9 of higher education or other appropriate agency or entity for scoring High School
10 Equivalency Diploma program examinations.

11 (6) On June 29, 2017, any high school equivalency diploma or external diploma
12 previously recognized or issued by the Commonwealth shall be considered
13 retroactively as a High School Equivalency Diploma.

14 (7) Upon issuance, a High School Equivalency Diploma shall not be invalidated by any
15 subsequent changes in test selection under this section.